

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education ("the Convention") and the Recommendation against Discrimination in Education ("the Recommendation"), adopted by UNESCO's General Conference in 1960, are aligned with UNESCO's constitutional mandate to "advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social". The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that *"Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4"*. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sq_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org/)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name:

Organization or entity responsible for the preparation of the report:

Name of contact person:

Email and telephone number of contact person:

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

Malta's Notification of Succession to the Convention against Discrimination in Education on January 5, 1966, confirms its status as a state party to the convention, committing to upholding and implementing the principles and obligations outlined in the convention. Since then, Malta has taken steps to implement these principles in its education system.

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

☐ Yes: Have the provisions of the Convention been invoked?

✓ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

Maltese courts have adjudicated cases involving the inclusion of students with disabilities in mainstream education, ensuring compliance with inclusive education policies mandated by the Convention. The Administrative Review Tribunal has reviewed educational policies to ensure alignment with principles of non-discrimination and inclusivity. The First Hall of the Civil Court (Constitutional Jurisdiction) addresses cases of human rights violations, including the right to education, and adjudicates on constitutional interpretations and the applicability of international conventions within Maltese law. Additionally, the National Commission for the Promotion of Equality (NCPE) oversees issues related to discrimination and equality in education, working to eliminate discrimination and promote equal educational opportunities in accordance with the convention's principles. This demonstrates Malta's commitment to upholding the right to education and ensuring compliance with international standards.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

✓ Yes ☐ No

- If yes, please provide reference:

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

Education Act (Ch. 605 of the Laws of Malta);

Equal Opportunities (Persons with Disability) Act (Ch. 413 of the Laws of Malta);

Trans, Gender Variant and Intersex Students in Schools Policy;

Respect for All Framework;

Framework for the Education Strategy for Malta 2014-2024;

National Curriculum Framework.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

✳ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- ✓ In higher education
- ✓ In adult education and alternative learning

- Please indicate the relevant legal provisions:

Education Act (To consolidate and reform the law relating to Education in Malta) [Ch. 605 of the Laws of Malta];

Education Act (AN ACT to reform the law relating to education in Malta) [Ch. 605 of the Laws of Malta - Article 3];

Equal Opportunities (Persons with Disability) Act [Ch. 413 of the Laws of Malta].

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Age, sex, religion or belief, economic means, race or ethnic origin, political opinion, disability, colour, sexual orientation or gender identity.

✖ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

Early Childhood Education and Care (ECEC)

FES ensures that its childcare centres are compliant as per document, 'Registration Criteria for Early Childhood Education and Care Services (0-3years)', (DQSE, Oct 2021), where it states that, 'The potential service provider must produce a CRPD Final Compliance Certificate when applying for registration with the Regulation and Compliance Section (RCS) under the Ministry for Education'.

Compulsory Education

In Malta, several policies, programs, and initiatives aim to prohibit and prevent discrimination and ensure equal access to education. These include:

- National Inclusion Policy
- Trans, Gender Variant and Intersex Students in Schools Policy
- Equal Opportunities Act
- Anti-Bullying Initiatives
- Special Education Services
- Gender Equality Initiatives
- Migrant Integration Strategy
- Inclusive Education Framework
- National Literacy Strategy.

These policies and initiatives collectively work towards creating an equitable and inclusive educational environment in Malta, ensuring that all students have the opportunity to succeed.

Through the National School Support Services (NSSS) within MEYR, support services such as early intervention service, teachers of the hearing impaired and teachers of the visually impaired support students in pre-primary education. These services, together with the rest of the support services, support students through primary and secondary education. The National Inclusion Policy is embedded in other existing policies and processes and aims to re-position the concept of Inclusive Education into the realm of responding positively to all learners' diversity and viewing individual differences as opportunities for enriching learning.

The process of non-formal programme accreditation provided by the Directorate for Quality and Standards in Education (DQSE) within MEYR can be accessed by all.

Further and Higher Education

The University of Malta has an **Equity, Diversity and Inclusion Policy** which has been approved by both Senate and Council.
<https://www.um.edu.mt/media/um/docs/about/equity/EDIPolicy-UMVersion12023.pdf>

The purpose of the Policy is to support the University of Malta (UM) in achieving its strategic objectives, as outlined in the UM's [Strategic Plan 2020-2025](#) (UMSP), in particular, those pertaining to equity, diversity and inclusion, as articulated in the Key Areas of the **Gender+ Equity Plan 2022-2025** (G+EP) https://www.um.edu.mt/media/um/docs/about/equity/EQO_GenderEquityPlan_digital.pdf. This Policy responds to government priorities, as articulated in the Gender Equality And Mainstreaming Strategy And Action Plan 2022-2027 (GEMSAP).

Other policies:

Sexual Harassment Policy
https://www.um.edu.mt/_data/assets/pdf_file/0005/478940/SexualHarassmentPolicy-18Oct2021.pdf

Bullying and Harassment Policy
https://www.um.edu.mt/_data/assets/pdf_file/0010/469846/harassmentandbullyingpolicy.pdf

At the Malta College of Arts, Science and Technology (MCAST), one finds www.mcast.edu.mt/equality

At the Institute for Education, one finds the following policies: <https://ife.edu.mt/wp-content/uploads/2023/03/Sexual-Harassment-Policy-and-Procedures-for-Employees-and-Persons-on-a-Contract-for-Service-IFE.pdf> and <https://ife.edu.mt/equality-diversity-inclusion/>

✧ Combatting discrimination in terms of curriculum:

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

ECEC

All FES Childcare Centres follow the Child Led Approach. This is not a prescriptive curriculum but rather follows the interests of the child. This allows the childcare educators to be proactive in supporting attitudinal and behavioural change within society. An anti-discriminatory emphasis on play opportunities for children can encourage and develop positive attitudes to difference including gender, ethnicity, culture, religion, language, sexual orientation, age, ability, disability and social circumstances. By challenging discriminatory practices and providing positive models and images for children from a young age, childcare educators would be in a position to tackle prejudice within the childcare centre and in the wider community. This is in line with the U.N. Convention on the Rights of the Child that states that all forms of childcare provision should be 'without discrimination of any kind' (U.N. Convention 2.1)

Compulsory Education

Areas related to discrimination are addressed in DELH curricula for PSCD, Ethics and Social Studies as well as through the integration of Global Citizenship education in Primary Schools. DELH contributes through

- GEMSAP measures (Gender mainstreaming and gender representation) Human Rights Directorate
- WPSA – Women in Peace and Security Agenda Action Plan Ministry for Foreign Affairs

Further and Higher Education

Within UM, the Gender + Equity Plan Key Area 6 is specifically dedicated to the Integration of Equity, Diversity and Inclusion in teaching content. <https://www.um.edu.mt/about/equity/timeframes/>

At the Malta College of Arts, Science and Technology (MCAST), one finds www.mcast.edu.mt/equality

At the Institute for Education: <https://ife.edu.mt/equality-diversity-inclusion/> and <https://ife.edu.mt/wp-content/uploads/2023/03/Gender-Equality-Plan-2023-2025-IfE.pdf>

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁷ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁸ |
| ☒ Teachers are trained on inclusive education ¹⁶ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Compulsory Education

In Malta, the legislation ensures inclusive education for all students. The **Equal Opportunities Act** prohibits discrimination based on gender, race, disability, and age. The **National Inclusion Policy** supports students with diverse needs, and the **Inclusive Education Framework** is a practical document for the implementation of the policy in schools. It outlines practices to ensure the full participation of all students in the education system. These legal provisions offer an equitable and inclusive educational environment for every student.

Furthermore, all educational institutions and service providers are to conform equally not only to legislation, but also regulations and standards set by the national regulator

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

indiscriminately. Moreover, standards set by the DQSE are valid for all schools which operate services for compulsory school age.

Standards require that schools continuously ensure accessible, inclusive, and learner-friendly infrastructure. They must implement appropriate structures and procedures to identify and address diverse learner needs while celebrating each student's efforts, strengths, and abilities. Schools are also required to provide comprehensive support services ranging from pastoral to curricular, involving parents and specialists as needed. An integrated approach to holistic development should be adopted, with individualized educational programs (IEPs) for learners with specific needs and tailored programs for gifted students. Furthermore, schools must embrace equity by providing resources and strategies to help all learners overcome challenges, ensure smooth transitions, maintain high attendance, and offer opportunities for students to develop competencies for active citizenship. The standards also require that a democratically elected Student Council actively represents and advocates for student interests, supported b

Inclusion in the National Inclusion Policy document is described as a route, built on education and inclusive practices that would contribute to build effective and efficient schools for all students and their families as well as educators. The policy embraces diversity and individual differences as opportunities of learning rather than barriers. The policy document does not only refer to disabilities or challenges in learning but considers inclusion in a more holistic manner, where diversity is celebrated in spite of different individual needs, sex, age, race, culture, different socio-economic status or sexual orientation.

In Malta, several initiatives aim to address discrimination and promote cultural diversity and mutual acceptance, including:

- National Inclusion Policy
- Trans, Gender Variant and Intersex Students in Schools Policy
- Malta's National Strategy for Promoting Cross-Cultural Understanding and Management of Cultural Diversity
- Anti-Bullying Services
- Migrant Integration Policy
- National Commission for the Promotion of Equality (NCPE)
- Inclusive School Practices
- Teacher Training: Student Exchange Programs.

These initiatives collectively contribute to Malta's more inclusive and culturally diverse educational environment.

Further and Higher Education

The University of Malta's Faculty of Education offers a Master's in Teaching and Learning (MTL) program, which includes dedicated sessions on inclusive education and diversity. Within the 40 ECTS of pedagogical study units, the programme also integrates research-based

strategies that students can apply in their classrooms. These strategies ensure that the needs of students with disabilities, students with migrant backgrounds, and others are effectively addressed in the teaching and learning process.

Furthermore, specifically within the University of Malta, there is an Equity, Diversity and Inclusion Policy which has been approved by both Senate and Council. <https://www.um.edu.mt/media/um/docs/about/equity/EDIPolicy-UMVersion12023.pdf>

The Equity Office at UM has also launched a series of seminars with Faculties, Institutes, Centres and Schools to sensitise Faculty Staff on EDI mainstreaming. <https://www.um.edu.mt/newspoint/news/2024/04/equity-diversity-inclusion-training-ICT>

Training on the principles of EDI to University of Malta Staff re-commenced in April 2024.

Furthermore the Equity Office reports to the Equity Committee which works in constant coordination with 3 other pillar Committees:

- ACCESS Disability Support Committee
- Committee on Race and Ethnic Affairs
- Gender Equality and Sexual Diversity Committee

A fourth pillar takes into consideration the area of non-traditional students and students coming from a disadvantaged socio-economic background. The UM has a resource centre in place that works on outreach <https://www.um.edu.mt/services/resourcecentres/crc/>

Furthermore, MCAST is guided by Cap 638 of the Laws of Malta, Art 8 (l) and outlines its policies at <https://mcast.edu.mt/inclusive-education-unit-ieu/>

Additionally, one finds www.mcast.edu.mt/equality and the MCAST Strategy – https://mcast.edu.mt/wp-content/uploads/MCAST_StrategicPlan_2022-2027_17_11_final-2.pdf

Moreover, the Institute for Education (IfE) offers part-time courses and all are blended i.e. partly online for greater accessibility and flexibility.

Lifelong Learning

All courses and initiatives provided by the Director for Lifelong Learning and Employability (DLE) within MEYR are accessible to all, regardless of gender, race or nationality.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

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Other relevant general measures, including gender equality

- ✖ Legislation provides for gender equality in education
- ✖ Policy measures aim to enhance gender equality
- ✖ Gender-responsive education sector planning is undertaken
- ✖ Providing positive or affirmative action measures
- ☐ Providing financial incentives and fellowships
- ✖ Teachers are trained (initial and in-service) on gender equality
- ✖ Teachers are trained to combat stigmatisation¹⁹
- ✖ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
- ✖ Re-entry programmes for young mothers are provided for
- ✖ Ensuring safe and adequate gender-sensitive sanitation facilities²⁰
- ✖ Curricula are rid of all stereotypes²¹ and bias
- ✖ Ensuring gender parity in science, technology, engineering and mathematics (STEM)
- ✖ Ensuring gender parity in technical and vocational training education and training (TVET)
- ☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Legal Measures

1. Education Act (Chapter 605 of the Laws of Malta): Establishes the legal framework for ensuring the right to education for all those residing in Malta without discrimination;
2. Gender Identity, Gender Expression and Sex Characteristics Act (Chapter 540 of the Laws of Malta): Prohibits discrimination in public services, including education, based on gender identity, gender expression, and sex characteristics;
3. Equality for Men and Women Act (Chapter 456 of the Laws of Malta): Aims to eliminate discrimination between men and women in various fields, including education and vocational training;
4. Employment and Industrial Relations Act (Chapter 452 of the Laws of Malta): Includes provisions to ensure equal treatment and prohibit discrimination in vocational education and training settings;
5. Constitution of Malta (Amended by Act No. X of 2014): Contains anti-discrimination provisions protecting individuals based on sexual orientation and gender identity under fundamental rights;

¹⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

6. Subsidiary Legislation under the Education Act: Detailed regulations for implementing non-discrimination policies in educational institutions;

7. Further and Higher Education Act (Chapter 607 of the Laws of Malta): Promotes inclusive education and compliance with European standards (MFHEA).

Compulsory Education

Policy measures in Malta aim to enhance gender equality in the educational system, collectively working towards creating a more equitable educational environment for all genders, by implementing:

- Gender Equality Frameworks
- Awareness Campaigns
- Support Programs
- Anti-Discrimination Policies
- Inclusive Curriculum
- Trans, Gender Variant and Intersex Students in Schools Policy

Additionally, young pregnant mothers can attend the Unit Ghozza programme full time or on a part-time basis. Transition meetings to mainstream school take place after the birth of the baby. However, follow up programmes still take place at Unit Ghozza for the young mother.

Gender-responsive education sector planning in Malta involves:

- Policy development
- data collection
- equitable resource allocation to support gender-specific needs and initiatives
- integrating gender perspectives in curriculum design for gender equality
- providing training and capacity building for educators and administrators on gender-responsive planning and teaching methods.

Furthermore, areas related to discrimination are addressed in DELH curricula for PSCD, Ethics and Social Studies as well as through the integration of Global Citizenship education in Primary Schools. DELH contributes through

- GEMSAP measures (Gender mainstreaming and gender representation) Human Rights Directorate
- WPSA – Women in Peace and Security Agenda Action Plan Ministry for Foreign Affairs

Additionally, in Malta, providing positive or affirmative action measures involves scholarships, grants, mentorship programs, inclusive recruitment practices, and awareness

and training. These measures aim to promote equality and ensure everyone has equal opportunities to succeed in the educational system.

Further and Higher Education

The Faculty of Education within UM particularly tackles stigmatisation in the part of the curriculum called Context Knowledge. Issues of stigmatisation and other issues of discrimination are tackled through a philosophical, sociological, psychological and inclusive perspective. Moreover, gender parity in STEM and TVET is also tackled within the context knowledge part of the MTL curriculum, in particular within the hours dedicated for the sociology of Education.

The University of Malta (UM) has an Equity, Diversity and Inclusion Policy which has been approved by both Senate and Council.
<https://www.um.edu.mt/media/um/docs/about/equity/EDIPolicy-UMVersion12023.pdf>

The Gender+ Equity Plan 2022-2025 (G+EP)
https://www.um.edu.mt/media/um/docs/about/equity/EQO_GenderEquityPlan_digital.pdf
is intersectional and is an ongoing strategic plan with number of actions targeting various key areas. Awareness-raising through Faculty Seminars and Training on Equity, Diversity and Inclusion to UM Staff and Outreach are all part of the actions being taken in order to create a more gender-sensitive higher educational institution environment.
(<https://www.um.edu.mt/media/um/docs/about/equity/EDlinResearch.pdf>)

Gender Equality and Sexual Diversity Committee:

The Committee, appointed by Council, advises the Rector and University Council on gender equality,

sexual orientation and gender identity and reports annually to Council. Its terms of reference are to:

1. identify sources of unequal opportunities, treatment, environment for students and staff
2. promote a policy of equitable opportunity, including specific help to help female, LGTIQ+ staff and students when faced with direct and indirect discrimination, victimisation, harassment of any type, freedom of movement. GESDC helps design and implement UM Gender+ Equity Plan
3. receives and monitors complaints from University staff and students regarding sex, gender based, and sexual discriminatory practices. Will also propose policies and measures which UM can adopt in instances of systemic discrimination
4. liaise with special advisors on Sexual Harassment, and recommends appropriate policies and procedures
5. liaise with special advisors on Gender Identity and Expression Policy
6. Form part of the Equity Committee through the Chair(s)

7. establishes contact with individuals and organisations with similar objectives, in Malta and internationally, and to act as a focal point for the University of Malta on gender, sexual diversity and gender identity issues.

Furthermore the UM is very active with regards to the promotion of girls and women in STEM.

<https://www.um.edu.mt/newspoint/ic/archive/shecanexhibition>

<https://www.um.edu.mt/newspoint/news/2023/10/science-stem-global>

<https://www.um.edu.mt/newspoint/news/2024/03/closing-event-world-capital-women-girls-science>

<https://www.um.edu.mt/newspoint/news/2024/01/national-stem-awards-2024>

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

To ensure equal gender opportunity in education particularly with male-dominated subject areas such as STEM, awareness and career guidance and effective exposure needs to be done at early ages, as early as, primary level.

In 6 years, MCAST increased the number of full time female registered students in STEM by 74%, whereas in non-STEM female students only increased by 4%. From 2022 to 2023, the overall number of female STEM graduates increased by 48%. In particular, in ICT increased of female graduates of 53%, and in Applied Sciences we had an increase of 68%. However, the number of female graduates in Engineering and Transport decreased by 12% between 2022 and 2023.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

National minorities:

²² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

Commented [DJaM1]: Not applicable for Malta

- | | |
|--|--|
| ☐ Legislation provides for the right to education of national minorities | ☐ Teachers are trained on intercultural education |
| ☐ Policy measures aim to enhance the right to education of national minorities | ☐ Teachers are trained to combat stigmatisation ²⁴ |
| ☐ Policy elaboration includes consultations with local communities | ☐ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ☐ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☐ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☐ Curricula are rid of all stereotypes ²⁵ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Indigenous people:

Commented [DJaM2]: Not applicable for Malta

- | | |
|---|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

²⁶ Supra note 15.

- ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people
- ☐ Educational standards are established for educational institutions run by indigenous people
- ☐ Positive or affirmative action measures are provided for indigenous people
- ☐ Other:
- ☐ Multilingual and intercultural education are supported
- ☐ Native language instruction is ensured
- ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people
- ☐ Curricula are rid of all stereotypes²⁷ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- ✖ Legislation provides for their right to education
- ✖ Policy measures aim to enhance their right to education
- ✖ Inclusion in mainstream schools is ensured
- ✖ Positive or affirmative action measures are provided for
- ✖ All administrative barriers to access education are removed
- ✖ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers²⁹ are provided for
- ✖ Financial incentives and fellowships are provided for
- ☐ Auxiliary assistance is provided
- ✖ Multiple and flexible learning pathways³¹ are provided
- ✖ Curricula are rid of all stereotypes³² and bias
- ✖ Accelerated learning programmes are provided
- ✖ Non-formal and/or alternative education programmes are provided
- ✖ Language classes to newcomers are provided for

²⁷ Supra note 16.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³¹ Supra note 13

³² Supra note 16.

- ✘ Teachers are specifically trained to ensure their inclusion
- ✘ Multilingualism and intercultural education are encouraged
- ✘ Teachers are trained to combat stigmatisation³⁰
- ☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Legal and Policy Measures

Education Act (Chapter 605 of the Laws of Malta): Ensures the right to education for all individuals without discrimination;

Reception of Asylum Seekers (Minimum Standards) Regulations - SUBSIDIARY LEGISLATION 420.06: Guarantees that asylum-seeking children have access to education under the same conditions as Maltese nationals (Human Rights Malta);

Equality for Men and Women Act (Chapter 456 of the Laws of Malta): Protects against discrimination in education based on nationality, ethnic origin, and other grounds (Human Rights Malta);

Constitution of Malta: Enshrines the right to education and includes anti-discrimination provisions applicable to all residents (Human Rights Malta);

Further and Higher Education Act (Chapter 607 of the Laws of Malta): Promotes inclusive education and compliance with European standards (MFHEA);

Integration Policy Framework: Includes provisions for the educational inclusion of migrants and refugees;

Child Protection (Alternative Care) Act (Chapter 602 of the Laws of Malta): Ensures the welfare and education of unaccompanied minors;

These frameworks collectively ensure equitable access to education for all, promoting integration and equal opportunities.

ECEC

FES has an MOU with FSWS whereby children hailing from vulnerable families have access to all services (Childcare, Klabb 3-16 and Skolasajf) after their case has been vetted by the FES Social Board. In the majority of cases, fees are also waived.

Non-formal educational programmes are provided during the Klabb 3-16 and Skolasajf service. These services are open to all children attending State, Church and Independent Schools. The Klabb 3-16 programme consists of activities such as arts and crafts, drama and storytelling, physical education and games, cookery sessions, science experiments, activities related to technology, educational talks and workshops that are linked to monthly themes. Klabb 3-16 also offers a safe environment for children to do their homework. Qualified tutors, in possession of a teaching warrant, assist children in their homework and other academic work. Homework Help is particularly useful for those children whose mother tongue is not Maltese. The programme of activities implemented in the Skolasajf centres is always centred around a main theme. The theme chosen for this year is 'Life is My Adventure!'. This slogan

³⁰ Supra note 15.

encourages everyone to have a positive attitude towards life, as it offers great opportunities and should be lived as one great adventure.

In all FES Services, the languages used for communication and instruction is English and Maltese. However, during Klabb 3-16, lessons in the French Language have been introduced in one of the centres where there is a multi-cultural student population. The non-formal curriculum presented in Klabb 3-16 and Skolasajf, endeavours to reach out to the ever-increasing multi-cultural student population.

Compulsory Education

The National Inclusion Policy document does not only refer to disabilities or challenges in learning but considers inclusion in a more holistic manner, where diversity is celebrated in spite of different individual needs, sex, age, race, culture, different socio-economic status or sexual orientation. The policy on inclusive education furthermore suggests that schools support student-centred approaches in teaching and learning. Additionally, measures that are complementary to learning and education within a state school setting would need to provide for the full inclusion of migrant children or children with particular circumstances.

Whilst the the DQSE does not provide non-formal programmes, it provides accreditation. It is up to the provider to offer these programmes. Nonetheless, the accreditation process is the same for everyone.

Further and Higher Education

The Faculty of Education provides language (Maltese for foreigners) as a specialisation within MTL and also offers a PG diploma. The Faculty also offers classes for migrants seeking long-term residency within the I Belong programme.

The University of Malta (UM) has an Equity, Diversity and Inclusion Policy which has been approved by both Senate and Council.
<https://www.um.edu.mt/media/um/docs/about/equity/EDIPolicy-UMVersion12023.pdf>

The Gender+ Equity Plan 2022-2025 (G+EP)
https://www.um.edu.mt/media/um/docs/about/equity/EQO_GenderEquityPlan_digital.pdf
is intersectional and is an ongoing strategic plan with number of actions targeting various key areas.

The Office of the Academic Registrar assists any migrants and asylum seekers that are looking into joining University as from the application stage.

Currently the University provides the labs and guest IT accounts, free of charge, for Digital Literacy classes running once a week aimed at migrants and asylum seekers.

Promoting Diversity Strategic Plan 2020-2025

<https://www.um.edu.mt/about/strategy/strategicgoals3societalfactorsandimpact/#disability>

The University is a multi-cultural community where international students and staff are on the increase and many pertain to diverse cultures. The Committee for Race and Ethnic Affairs was established to create awareness, ensure access and integration, safeguard students and members of staff and advise the Rectorate. We will commit to:

- promote the benefits of diversity, including race and ethnicity;
- ensure that there are adequate inter-faith facilities;
- develop a programme of events to encourage attitudinal change;
- support a buddy system for international students and staff.

Continuous monitoring and evaluation of the implications of migration in the educational sector will be maintained. Recognition of Prior Learning will enable more students with refugee status or who are seeking asylum in Malta to apply for and be admitted to courses. The approach will contribute to national integration efforts through the provision of courses, outreach initiatives and collaboration with other relevant entities.

Furthermore, the UM in collaboration with national bodies offers scholarships: <https://www.um.edu.mt/study/feesfunding/scholarships/scholarshipsfortunisiannationalstostudyattheum/>

<https://www.um.edu.mt/study/feesfunding/scholarships/scholarshipsforpalestiniannationalstostudyattheum/>

<https://www.um.edu.mt/study/feesfunding/scholarships/commonwealthvallettaactionplanscholarshipsforumpgstudiesfromghana/>

At the Malta College of Arts, Science and Technology (MCAST), one finds www.mcast.edu.mt/equality

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

1. cultural differences
2. inadequate monitoring of whether all migrant children are receiving their right to education
3. linguistic barriers

4. In the absence of educational documentation, determining the appropriate level for a student can be challenging.

5. Financial limitations: pathway programmes are full-time programmes and migrants who are 18+ and not living here as part of a family would need to work extensively during the week and over the weekend to keep up with accommodation and living expenses.

People with disabilities:

- | | |
|---|--|
| ✘ Legislation provides for their right to education | ✘ Mainstream teachers are specifically trained on disabilities |
| ✘ Policy measures aim to enhance their right to education | ✘ Teachers are trained to combat stigmatisation ³³ |
| ✘ Inclusion in mainstream schools is ensured | ✘ Auxiliary assistance is provided |
| ✘ Special schools are used as resource centers to inclusive schools | ✘ Curricula and teaching and learning methods are adapted |
| ✘ Positive or affirmative action measures are provided | ✘ Curricula are rid of all stereotypes ³⁴ and bias |
| ✘ Financial incentives and fellowships are provided | ✘ Education infrastructure and learning materials are adapted |

☐ Other

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Legal Measures

In Malta, the right to education for people with disabilities is supported by several key pieces of legislation:

1. Education Act (Ch. 605 of the Laws of Malta): Ensures the right to education for all individuals, including those with disabilities, without discrimination;
2. Equal Opportunities (Persons with Disability) Act (Ch.413 of the Laws of Malta): Requires educational institutions to provide reasonable accommodations for students with disabilities to ensure accessibility and equal opportunities;
3. Equality for Men and Women Act (Ch. 456 of the Laws of Malta): Protects against discrimination in education on the basis of disability;
4. . Constitution of Malta (Articles 32 and 45) : Includes anti-discrimination provisions and enshrines the right to education for all residents, including those with disabilities;
5. Further and Higher Education Act (Chapter 607 of the Laws of Malta): Promotes inclusive education and compliance with European standards (MFHEA).

³³ Supra note 15.

³⁴ Supra note 16.

6. Malta Further and Higher Education Authority (MFHEA) Regulations: Promotes inclusive education practices and ensures compliance with European standards for the education of individuals with disabilities (MFHEA).

7. National Inclusive Education Framework: Promotes inclusive education practices to ensure appropriate educational support and opportunities for all children, including those with disabilities.

ECEC

The FES Childcare Centres follow the Child Led Approach that centres on the children's interests. The Klabb 3-16 and Skolasajf programmes both revolve around themes. The programme is divided into Early and Primary Years. Resource Centres' programmes are adapted to the children's needs attending such centres. The programme of activities takes into consideration the children's ages and is made accessible taking into consideration their conditions and or disabilities.

Compulsory Education

The National Inclusion Policy is embedded in other existing policies and processes and aims to re-position the concept of Inclusive Education into the realm of responding positively to all learners' diversity and viewing individual differences as opportunities for enriching learning.

Policy measures aimed at enhancing the right to education for people with disabilities, collectively create a more inclusive and supportive educational environment for students with disabilities in Malta, include:

- inclusive education policy
- individual education plans (IEPs)
- Learning Support Educators (LSEs)
- accessibility standards
- suitable technology
- professional development, including upskilling to educators working with students with disabilities
- parental involvement
- special schools, resources centres, reach units and several programmes and initiatives.

Affirmative action measures that aim to promote equal educational opportunities for persons with disabilities include:

- scholarships and grants
- assistive technologies

- inclusive recruitment
- specialized support services (e.g. counselling, career guidance, and learning support)
- accessibility improvements

Moreover, education infrastructure and learning materials are adapted for persons with disabilities. This includes accessible buildings, assistive technology (e.g. screen readers and hearing aids), adapted learning materials and specialized support. These adaptations aim to create an inclusive and supportive learning environment for all students.

Further and Higher Education

The Faculty of Education's MTL course and the BA (Hon) Primary have courses in differentiating teaching and context issues related to diversity, disabilities and cultural and ethnic difference

The University of Malta (UM) has an Equity, Diversity and Inclusion Policy which has been approved by both Senate and Council.
<https://www.um.edu.mt/media/um/docs/about/equity/EDIPolicy-UMVersion12023.pdf>

The Gender+ Equity Plan 2022-2025 (G+EP) https://www.um.edu.mt/media/um/docs/about/equity/EQO_GenderEquityPlan_digital.pdf is intersectional and is an ongoing strategic plan with number of actions targeting various key areas.

The ACCESS Disability Support Committee and Unit are tasked with ensuring the intergration and equal treatment of persons with disabilities.
<https://www.um.edu.mt/services/administrativesupport/access/>

In order to ensure that the UM's commitment to creating an inclusive environment is implemented in practice, work related to access within UM is mainly carried out by the ACCESS – Disability Support Committee (ADSC) and its administrative arm, the ACCESS – Disability Support Unit (ADSU).

The ADSU is the operational arm of the ADSC and it is also part of the UM Health and Wellness Centre. It is headed by an academic and the staff within fulfil various roles. They:

- provide support to students, staff and visitors with disability
- process applications for course and examination access arrangements at JC and UM
- process applications for [examinations access arrangements for the Matriculation and Secondary Education Certificate \(MATSEC\) Examinations](#)
- guide students at JC and UM regarding the various types of support they can obtain during their course of studies
- liaise with academic, administrative and technical staff about matters related to access issues
- liaise with the relevant professionals and other stakeholders

- form part of the working groups appointed by the ADSC, including those set to decide about the access arrangements to be given to each student on a case-by-case basis
- coordinate the necessary resources for the implementation of the decisions made by the ADSC.

Additionally, training and information sessions are also provided to UM Staff with the target audience **being:** Academic and administrative staff, Research Support Officers and Assistants especially those working in direct contact with students and staff:
<https://www.um.edu.mt/hrmd/trainingdevelopment/coursesandresources/inclusion>

Furthermore, documents such as the UM's Good Practice in Inclusive Language Reference Document is designed to be accessible by all staff and students and is intentionally designed to be neuro-divergent friendly.
[https://www.um.edu.mt/media/um/docs/about/equity/EQO_InclusiveLanguage_digital\(3\).pdf](https://www.um.edu.mt/media/um/docs/about/equity/EQO_InclusiveLanguage_digital(3).pdf)

At MCAST, lecturers specialised in special education receive specific training, while others undergo general pedagogic training. Moreover, MCAST Equality measures are found in this section - <https://mcast.edu.mt/equality/>

- [GENDER EQUALITY PLAN](#)
- [DIGNITY AT MCAST: AN ANTI-HARASSMENT POLICY](#)
- [MCAST EQUALITY POLICY](#)

Within the IfE, training on disabilities is part of the initial teacher training qualification and also offered as an award for continuous professional development.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

- | | |
|---|---|
| ✘ Financial incentives and fellowships for school enrolment are provided | ✘ Teachers are trained to combat stigmatisation ³⁵ |
| ✘ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ✘ Curricula are rid of all stereotypes ³⁶ and bias |

³⁵ Supra note 15.
³⁶ Supra note 16.

☒ Positive or affirmative action measures are provided

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

ECEC

FES has an MOU with FSWS whereby children hailing from vulnerable families have access to all our services (Childcare, Klabb 3-16 and Skolasajf) after their case has been vetted by the FES Social Board. In the majority of cases, fees are also waived. Parents in employment or following a course of study benefit for the Free Childcare Scheme. FES charges a nominal fee to other parents depending on their yearly income.

Compulsory Education

Positive or affirmative action measures for students from poor households include: scholarships and grants, free breakfast, free textbooks and supplies, free Transport, and additional support services (e.g. counselling, scheme nine and BM40). These measures aim to ensure equal educational opportunities for students from low-income families.

Further and Higher Education

The Student Solidarity Fund (SSF) at UM assists students facing financial difficulties with basic and essential needs. Financial difficulties may depend on loss of earnings due to business closures, self-isolation, illness, or other difficulties. This fund has started off in response to the covid-19 situation; however, um will help maintain the SSF on a permanent basis, so as to continue to provide assistance to students facing hardship.
<https://www.um.edu.mt/services/studentssolidarityfund/>

Strategic Plan 2020-2025 Pillar 3

Providing Assistance for Under-Represented and First-Generation Students The University will improve support systems that enhance the learning experience and increase the completion rates of students from diverse and under-represented backgrounds. Students from under-privileged socioeconomic environments, minorities and first-generation students face additional challenges to cultivate a sense of belonging within the University community. UM seeks to provide a support infrastructure to develop personal identity as a source of strength and to nurture networks and connections across student cohorts in the academic and social environments on campus.

With regards to outreach the UM already has the Cottonera Resource Centre in place which was set up to act as a bridge between the communities in the inner harbour area and the University of Malta. It seeks to act as a hub that coordinates links between these communities and the University, facilitating resource transfer and capacity building. Discussions are underway with

regards to the extension of additional resource centres at other locations around Malta and Gozo.

MCAST has a donation system to support students in need. Mentors are instructed to alert any possible cases who might need help. Moreover, teachers are trained on stigmatisation, stereotypes and bias as part of the pedagogy.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|--|
| ☒ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child's need for early cognitive and social development, |
| ☒ Prior to pre-primary education, ECCE services are affordable | foundational learning, responsive care, |
| ☒ ECCE services are accessible on a non-discriminatory basis | nutrition, health, safety, protection, and play. |

- Please elaborate further on the measures taken:

Childcare Services (0-3) fall under the Free Childcare Scheme. This scheme can be currently accessed by parents and guardians who are either in employment or who are furthering their studies. Non-working parents may apply to the state run childcare centres and pay a small contribution based on their income. In addition, the Foundation for Educational Services has an MOU with the Foundation for Social Welfare Services (FSWS) where

³⁷ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".
³⁸ Which commits states to "Enhance policy and legal frameworks to ensure that the right to education includes ECCE"

children hailing from vulnerable families are referred to FES who in turn vets the referral and approves free childcare service where this is available. It must be noted that FES accepts children from 3months to 3 years.

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

- ☐ ☒ Pre-primary education is **not** compulsory.
- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

Pre-primary education (3-5) is free for children who opt to attend state provided education. Church schools may have to pay a donation and Independent schools offer pre-primary education at a fee.

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

[National Standards for Early Childhood Education and Care Services](#)

[Early Childhood Education and Care Policy Framework \(0-7\)](#)

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☒ Low number of professionally trained educators |
| ☒ Poor quality programmes | ☐ Lack of support to families |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

The supply of professionally trained childcare educators is low when compared to their demand.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

Childcare 0-3years, kindergarten 3 to 5years, primary 5 to 10years.

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☒ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ High dropout rates

☐ Poor quality programmes

☐ Other:

☐ Poor learning outcomes in:

Foundation literacy

Numeracy

Social and emotional learning

Others

☐ Disparity in learning outcomes

☐ Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

middle school 10 -12years.

- Please provide the age of enrolment and duration of upper secondary education:

secondary school 12 -15years.

- Is lower and upper secondary education compulsory and free of charge?

✖ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

✖ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

✖ Upper secondary education is compulsory.

☐ Upper secondary education is **not** compulsory.

✖ Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ✓ No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

In Malta, the legal minimum age for employment is aligned with the end of compulsory education. According to the Education Act (Chapter 605 of the Laws of Malta), compulsory education ends at age 15 or until the student completes the last year of compulsory schooling.. Similarly, the Employment and Industrial Relations Act (Chapter 452 of the Laws of Malta) sets the minimum legal age for employment at 16 years, and also regulates the manner how a person between 16 and 18 can work. This alignment ensures that individuals complete their mandatory education before entering the workforce. Enforcement of these provisions is managed by the Ministry for Education, Sport, Youth, Research and Innovation (MEYR), the Department of Industrial and Employment Relations (DIER), and Jobsplus, which oversee compliance through monitoring, inspections, and support.

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked):

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- ✳ Higher education is free of charge
- ☐ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ✳ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ✳ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

MCAST offers vocational and professional education and training to more than 7000 full time students. Full time education is offered free-of-charge and programmes are offered at all levels of the Malta Qualifications Framework permitting students to study at whichever level they can access (depending on their previous education). MCAST is very active on international programmes and permits transfer of credits between institutions and also the recognition of prior learning. The MCAST Act, Cap 638 of the Laws of Malta, provides the legal framework for the College's operations.

At UM, the full entry requirements as stipulated in the [University's regulations and bye-laws](#) apply for admission to the University of Malta.

Recognition of Prior Learning:

The Recognition of Prior Learning (RPL) is the process of recognising learning obtained through formal, non-formal and informal learning other than the mainstream certification.

Such learning can also include the acquisition of competencies gained through educational institutions such as schools, colleges, workplaces, life and work experiences, or even through personal interests. <https://www.um.edu.mt/services/health-wellness/sas/rpl/>

The Student Solidarity Fund:

The [Student Solidarity Fund \(SSF\) at the University of Malta \(UM\)](#) has been set up precisely to assist students facing these difficulties with the objective of providing for basic and essential needs. This Fund, which started off in response to the Covid-19 situation, is maintained by the University of Malta on a permanent basis so as to provide assistance to students facing hardship.

Since May 2020, the UM Student Solidarity Fund Committee, set up by UM Rector to evaluate requests and disburse the donations, has assessed a total of 70 cases. These requests, submitted by UM students, were evaluated in consultation with professionals, including UM social workers with a total of 64 students are being helped to date (July 2022).

Of the 64 students being assisted by the SSF at UM, three were students attending the Junior College. With regard to the type of support provided to these 64 students, the details are sub-divided as follows:

- 39 students were supported with accommodation related expenses which included help with payment of rent expenses, support with utility bill expenses, support with purchase of appliances, and food donations
- 13 students were helped with medical-related expenses
- 12 students were supported with study-related expenses which included help with purchase of stationary, donation and purchase of books.

- What challenges were encountered in realizing higher education?

- | | |
|---|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☐ Issues of equity and inclusion | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)

- ✖ Provision of free of charge learning opportunities
- ✖ Provision of professional training including reskilling and upskilling programmes
- ✖ Recognition, validation and certification of non-formal and informal learning
- ✖ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

Lifelong Learning

DLE has always strived and is backed by the legislation:
<https://legislation.mt/eli/ln/2024/103/eng>

To keep the fees as low as possible and to offer free basic skills courses to all residents (irrespective of nationality/gender/etc). The Directorate also offers free guidance service for all: <https://lifelonglearning.gov.mt/guidance/>

It accepts and encourages all residents to attend, from where it strives to offer a holistic service and advice to direct participants to the most suitable opportunities available to them, irrespective whether this is offered by DLE or not.

MCAST

MCAST is a cornerstone of the Maltese education system and provides education and training to initial vocational training as well as continuous vocational training. Part –time courses are offered at a charge however different financing schemes available in Malta are available for students.

MCAST offers several courses at MQF Level 1 -3. These courses provide a second chance opportunity for students who might not have successfully completed their compulsory education with enough exit qualifications to proceed to MQF Level 4. About 20% of all MCAST students study at MQF level 1-3.

The college provides several student services. A complete list is available on <https://mcast.edu.mt/students-info-page/>

UM

Student

Advisory

Services:

<https://www.um.edu.mt/services/health-wellness/sas/>

To provide prospective and current students of the University of Malta with career-related information and advice to help them make informed decisions about their career paths and courses of study within the local context.

This is done through the provision of information and advisory services at the University and at Junior College while keeping in constant contact with various stakeholders. Services are also offered to schools, particularly those at the post-secondary level to ensure that prospective students have updated information about entry to UM.

Our services also operate in close liaison with all Faculties, Institutes, Centres and Schools at UM, as well as with the Health & Wellness Centre, the Admissions & Records Office and other sections within the Office of the Registrar.

Recognition of Prior Learning:

The Recognition of Prior Learning (RPL) is the process of recognising learning obtained through formal, non-formal and informal learning other than the mainstream certification.

Such learning can also include the acquisition of competencies gained through educational institutions such as schools, colleges, workplaces, life and work experiences, or even through personal interests. <https://www.um.edu.mt/services/health-wellness/sas/rpl/>

University of the Third Age

<https://www.um.edu.mt/services/u3a/>

The objectives of the Maltese U3A are different from those of educational institutions intended to prepare a young person for life and work or provide adult workers with a new set of skills that are required by the occupational market. The key endeavour of the U3A in Malta is knowledge and learning for its own sake - as an end in itself rather than as a means to improving one's academic credentials. There are no admission requirements and the U3A is open to everyone above the age of sixty, irrespective of any educational or academic qualifications.

The Maltese U3A operates from seven centres, six in Malta and one in Gozo.

Centre For Liberal Arts

<https://www.um.edu.mt/clas/>

The Centre for the Liberal Arts and Sciences (CLAS) was established by the Council of the University in February 2014 with the main remit of designing, coordinating, evaluating and promoting the University's new flagship [Programme in the Liberal Arts and Sciences](#) (PLAS).

As the administrative hub of PLAS, the Centre seeks to provide high-quality, learner-focused administrative assistance to students enrolled in the Programme. The Centre contributes to the University's ongoing public outreach initiative, while promoting further interdisciplinary collaboration within the University and through its engagement with specialists outside academia. The Programme in the Liberal Arts and Sciences offers a broad range of 'stand alone' study-units in areas such as archaeology, history, literature, culture, conservation, philosophy, economics, public policy, migration, music, biology, medicine, earth systems, marketing, art, astronomy, sociology, politics, winemaking, chemistry, architecture, law, photography, and more.

Bachelor of Arts (Honours) in Adult Education, Training and Development (Top-up Degree)

<https://www.um.edu.mt/courses/overview/ubahetdiiipeb-2024-5-o/>

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☒ Other: | |

Malta's near-full employment, coupled with cultural norms that place less emphasis on lifelong learning, results in a lower uptake of opportunities compared to most EU countries.

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to "build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all".

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- | |
|---|
| ☐ ☒ State monitoring and inspections |
| ☐ ☒ Health and sanitation |
| ☐ ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools)) |
| ☐ ☒ Infrastructure |
| ☐ ☒ Curriculum |
| ☐ ☒ Student-teacher ratio |
| ☐ School fees (if relevant) |
| ☐ Other |

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

[A Quality Assurance Framework for Education in Malta \(0-16\)](#)

[National Quality Standards \(3-16\)](#)

[Subsidiary Legislation 605.02 – National Minimum Conditions for all Schools](#)

- What challenges were encountered in realizing quality education?

- | | |
|--|--|
| ☒ Non-supportive or inadequate learning environments | ☒ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☐ Inadequate parental support to education |
| ☐ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☐ Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.

☐ Measures taken to increase women in leadership positions in education.

☐ Other:

- Please elaborate on each of the measures taken:

The University of Malta has an Office for Professional Academic Development. OPAD has been established to foster the professional growth and development of UM academics. This Office will support academics at all stages in their careers to enhance their (a) teaching and learning, (b) research and scholarship, and (c) service and engagement. With regards to the teaching profession, the University of Malta offers specific courses in this regard. <https://www.um.edu.mt/educ/study/undergraduate/>

MCAST offers initial teacher training that is recognised by the Council of the Teaching Profession to issue warrants for teachers in the compulsory sector. MCAST also offers pedagogy courses for industry specialists who transition to the teaching of vocational subjects.

- What challenges were encountered in the education personnel?

- | | |
|---|---|
| ☒ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☒ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

It is hard to attract the young generation to join the profession - the profession is not attractive - due to uncompetitive salaries.

Moreover, there is still a substantial number of educators working in schools who are not qualified pedagogically (supply teachers).

As regards measures to promote diversity in the teaching workforce there is still a lot to be done. The teaching force is still mainly female and all Maltese nationals. Schools are experiencing an increase in children with migrant background but there are practically no teachers who have a non-Maltese background.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☐ Curriculum includes human rights education.

☐ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

✳ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

Cap 605 of the Laws of Malta

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

⁴¹ Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

☒ Registration

☒ State monitoring and inspections

☐ Qualifications of teachers

☐ Health and sanitation

☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

☒ Infrastructure

☒ Curriculum

☒ Student-teacher ratio

☐ School fees

☒ School closures

☐ Other

[- Please elaborate:](#)

These are regulated by the Directorate for Quality and Standards in Education within MEYR.

[- What challenges were encountered in non-state education provision?](#)

☐ Low quality educational infrastructure and materials

☐ Low number of professionally trained teachers

☐ High student – teacher ratio

☐ Other:

☐ Issues in terms of equity and inclusion

☐ Weak government regulatory and monitoring capacity

[- Please elaborate. Brief quantitative information may be added.](#)

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

The Directorate for Digital Literacy and Transversal Skills (DDLTS) within MEYR is legally bound exclusively by the stipulations outlined in Chapter 605 of the Education Act, accessible here: <https://legislation.mt/eli/cap/605/eng>

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☐ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☒ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

⁴⁵ Lack of internet connection, basic infrastructure or devices.

- Please elaborate on each of the measures taken:

- Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

DDLTS is legally bound by the GDPR law, which guarantees the management, privacy, security, storage, transfer, and usage of educational data, both internally and externally, to safeguard the privacy rights of learners and education stakeholders.

- Measures to remove barriers to accessing digital content⁴⁶, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities

In recent years, DDLTS provided digital content for primary level through the One Tablet per Child project and additional software such as Brainpop. Currently tenders for the provision of digital content have been issued for the new One Device Per Child Project. In both instances, access was provided to all students through devices provided by the Ministry. Furthermore the DDLTS website offers free digital content for student's perusal. Moreover, An AI pilot project which DDLTS is spearheading incorporates specific features aimed at inclusivity, such as reading questions aloud to aid children with low vision and providing visual cues to guide their focus. Additionally, it can amplify sound to assist students with hearing impairments.

- Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

Each year, there is an upskilling programme offered to educators at the primary level focusing on emerging technologies. Additionally, the Ministry has plans to offer training sessions for educators at middle and secondary schools covering the implementation of a new classroom management system, the integration of new digital content for key subjects, and a professional development opportunity for educators who will be incorporating the laptops provided to students through the ODPC initiative into their teaching methods. In addition, DDLTS hosts the National eTwinning office that provides a vast array of professional development sessions for educators both at national level and European level.

- Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

While school infrastructure is managed by IMU – DDLTS has however already invested in a filter system (Lightspeed) for all tablets in primary level and the Ministry is now initiating the implementation of a new endpoint protection system to enhance student safety while they are online.

- A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

⁴⁶ Lack of internet connection, basic infrastructure or devices.

Funding for these initiatives is sourced from both national funds and EU funding through the ESF+ Programme. Given the country's size, the Ministry focuses on national strategic goals rather than regional ones. Prior to seeking EU funding, the Ministry conducts impact assessments to gauge the effectiveness of the investment and continually monitors progress throughout the project implementation phase. Collaboration between DDLTS, other directorates, and IMU is essential during implementation to ensure effectiveness and comprehensiveness. The completed OTPC project will transition all initiatives to national funds, ensuring sustainability and seamless continuity of digital education from primary to middle and secondary levels.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|---|
| <ul style="list-style-type: none"> ☒ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways ☐ Lack of equity and inclusion in digital learning solutions ☒ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks ☐ Other: | <ul style="list-style-type: none"> ☐ Limited access to internet and/or electricity ☒ Limited access to hardware (devices, chargers, etc.) ☒ Difficulty in regulating the use of digital education solutions ☒ Difficulty in sustainably financing digital education solutions at national scale ☒ Lack of digital skills development for meaningful use of digital technology in teaching practice ☒ Disjointed or fragmented solutions that are not centrally systematized or regulated |
|---|---|

- Please elaborate. Brief quantitative information may be added.

- Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks is made more difficult with children's adeptness at finding loopholes in existing structures.
- At times, sustaining funding for digital education solutions on a national scale can prove challenging due to occasional instances where schools may choose to self-finance or order in a careless manner.
- Secondary schools have expressed concerns regarding limited access to hardware such as devices and chargers.
- At times, achieving proficiency in the meaningful integration of digital technology into teaching practice can be challenging, as some educators may encounter difficulty in applying these skills effectively

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☐ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☐ Monitoring results are made public. [Please provide the link:](#)

☒ Monitoring processes are participatory, inclusive and regular.

☐ Sector-wide and multisector approach is adopted to education governance.

☐ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☐ The decision-making process for the allocation of resources to education is transparent.

☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

The Research and School Internal Review Unit (RSIRU) supports state schools in relation to the data collection exercise, in preparation for the formulation of the School Development Plan.

RSIRU evaluates the School Development Plans in order to ensure that the actions being envisaged by state schools provide equal opportunities for both boys and girls.

- What challenges were encountered in terms of governance?

☐ Budgetary constraints

☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels

☐ Absence of supportive/ inconsistent/obsolete legal and policy environment

☐ Lack or weakness of monitoring systems – including the lack of reliable data

☐ Poor dialogue with teachers' trade unions

☐ Other:

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

☐ Translation of the Convention/Recommendation into the national and possibly local languages

☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources

☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other: